

Mandate

Rule 40 and Rule 41 dates

Judgment was entered September 9, 2025. The forty-five-day period applicable when a United States agency is a party ended on October 24. The docket contains no petition for panel rehearing or rehearing en banc filed by that date. It also contains no timely motion to stay the mandate and no order altering the ordinary Rule 41 date. Seven days after the rehearing period ended is October 31, 2025.

The clerk has checked the judgment docket, the rehearing filing category, and the stay-motion category through issuance. The date calculation excludes the September 9 trigger day and requires no weekend or holiday adjustment to October 24 or October 31. This statement records the predicates for issuance; it does not suggest that a rehearing or stay request was adjudicated when none was filed.

Mandate

Judgment and opinion transmitted

The certified judgment and panel opinion are issued as the mandate on October 31, 2025. The mandate gives effect to the seven-component disposition: the unchanged P-7 correction is recognized; the post-order proffer remains outside the administrative record; the aggregate-risk, acquiescence, and meaningful-consideration determinations are vacated and remanded; the actual timing challenge is denied; and the petition is granted to the stated extent.

The agency may proceed on remand within its lawful authority and in accordance with the opinion. The mandate does not decide CAT eligibility, direct a grant of protection, admit later evidence, or expand the factual findings made by the court. The clerk serves the mandate on both parties, closes the appellate mandate stage, and retains the opinion, judgment, and issuance date in the court docket.